



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Michael Haggard #246

Work Assignment: Troop/Division - A; Post/Unit – 3, Cartersville

INCIDENT REPORT # DPS00167858

Related Crash Reports: C000944778 ; _____ ; _____

P.I.T. Involved: Yes

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: Yes

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 03/27/2024

Time: 14:30 hours

Location: Post 3 - Cartersville

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Seth Thompson, Sergeant Stephen Langham, TFC Michael Haggard

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 03/24/2024

Time: 03:17 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

TFC Haggard was patrolling I-75 southbound near Exit 285 (Red Top Mountain Road) when he checked a 2019 Mercedes sedan at 90 mph in a 70 mph zone. The violator slowed to 60 mph for no apparent reason, and he was weaving within his lane of travel. TFC Haggard activated his emergency lights and siren to initiate a traffic stop, but the violator refused to stop and instead initiated a pursuit.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A

If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TFC Haggard radioed Troop A Communications and informed them of the traffic stop. He advised of the vehicle's description and registration information, along with his location and direction of travel. When it was apparent that the violator was aware of TFC Haggard's emergency equipment but refusing to stop, TFC Haggard advised that he was in pursuit. Dispatcher McWhorter immediately cleared the radios for emergency traffic.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Dispatcher Cochran contacted Bartow County 911 to request assistance from local law enforcement. Dispatcher McWhorter broadcasted the pursuit to other Troop A units.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on I-75 Southbound at Exit Ramp #285 (Red Top Mountain Road), and it terminated on I-75 Southbound, just south of Entrance Ramp #285. The pursuit traveled a total distance of 0.85 miles and lasted approximately 1 minute, 2 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A If Yes, explain: The violator was suspected to be Driving Under the Influence of Alcohol based on his driving mannerisms observed prior to the pursuit. After the pursuit was terminated, the violator was confirmed to be DUI Alcohol, supporting a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☐ No If Yes, explain: TFC Haggard stated he experienced an adrenalin rush while conducting a felony traffic stop at the termination point, when the violator initially failed to comply with his commands.

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☐ N/A

Explain: TFC Haggard made one attempt to terminate the pursuit using the Precision Immobilization Technique, which was successful. The left front of TFC Haggard's patrol car made contact with the right rear of the violator's vehicle, causing the violator to spin clockwise and travel onto the west shoulder of I-75 southbound, where it came to a stop.

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: TFC Haggard engaged in the pursuit with all emergency equipment activated. TFC Haggard conducted a felony traffic stop once the pursuit was terminated, and he advised Troop A Communications after taking the violator into custody.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred at night and the roadway surface was dry. The traffic conditions throughout the pursuit would be described as light.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A

If Yes, explain: The violator's speed prior to the pursuit was checked at 90 mph in a 70 mph zone. Due to his erratic driving, he was suspected to be impaired. During the pursuit, the violator aggressively applied his brakes which nearly led to a collision with TFC Haggard's patrol car. Allowing the pursuit to continue any longer than necessary would only increase the risk to the public.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A

If Yes, explain: The violator's speed prior to the pursuit was checked at 90 mph in a 70 mph zone. Due to his erratic driving, he was suspected to be impaired. During the pursuit, the violator aggressively applied his brakes which nearly led to a collision with TFC Haggard's patrol car. Allowing the pursuit to continue any longer than necessary would only increase the risk to the public.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The violator's speed prior to the pursuit was checked at 90 mph in a 70 mph zone. Due to his erratic driving, he was suspected to be impaired. During the pursuit, the violator aggressively applied his brakes which nearly led to a collision with TFC Haggard's patrol car. The violator showed no regard for the safety of himself or others.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: TFC Haggard terminated the pursuit using the Precision Immobilization Technique. The PIT was performed at a relatively low speed and in an area where there was a low likelihood of a serious collision with fixed objects. TFC Haggard was unaware of any near-by officers who might be able to deploy Stop Sticks. There were not enough officers present in the pursuit to perform the Box-In Maneuver. The violator was suspected to be impaired, and at one point, he aggressively applied his brakes in what appeared to be an attempt to cause a collision with TFC Haggard. The violator began accelerating rapidly just prior to TFC Haggard's application of the PIT. The violator's erratic driving posed a threat to the safety of himself and others. TFC Haggard's decision to implement to PIT in order to terminate the pursuit was objectively reasonable in order to safeguard life and preserve public safety.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☐ N/A If Yes, explain: The violator's vehicle sustained functional damage to its right rear as a result of the PIT. TFC Haggard's patrol car sustained minor scratches to its brush guard.

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: TFC Haggard has been involved in approximately 10 prior pursuits over the course of his career as a Georgia State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: This was TFC Haggard's fifth implementation of the Precision Immobilization Technique to terminate a pursuit.

ISSUES ADDRESSED

1. Positives.

☐

N/A

If Yes, explain: TFC Haggard exhibited good driving and decision making skills during the pursuit. He communicated all pertinent information to Troop A Communications, and he conducted a felony traffic stop to effect the arrest of the violator.

2. Areas for improvement.

☒

N/A

If Yes, explain:

3. Other considerations.

☐

N/A

If Yes, explain: TFC Haggard drew his service weapon while taking the violator into custody, and a Use of Force report was completed. The violator was determined to be Driving Under the Influence of Alcohol.

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

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N/A

If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

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N/A

If Yes, explain:

Lieutenant A. Seth Thompson #35
Reviewing Officer

Lt. A. S. Thompson #35

4/4/2024

Date